



Fear, Start-Up

Security fears for your latest startup? These guys might be able to help.
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difference: the domain name (in a legal sense) at the time of registration must not infringe on existing trademarks or copyrights. So you can go ahead and buy beerboats.com in the hope that an entrepreneur with a vision of charting boat trips for beer aficionados will want to buy it off you for the right price.

Of course, domain investing is much more than just buying a couple of domain names and hoping to hit the lottery. Many long-time practitioners of domain parking have developed “parking plans” that they use to ensure minimal investment and maximum gain. They buy tens to hundreds (and at times even thousands) of domain names while calculating potential sales and dynamically adjusting costs of popular names to make up for retrospectively low-return domain purchases. While it may seem sketchy, this practice is perfectly legal and if done intelligently, can deliver excellent return on investment.

Identifying squatted domains

Back in the day, naming the business was way down on the priority list of an entrepreneur’s concerns. However, the Internet did well to change that by dropping the massive headache of domain parking. Now, even before you make your idea public, it is highly recommended that you first buy up any and all domain names even remotely related/similar to the name of your proposed business. For example, if you plan on

purchasing bombaybookclub.com, you’d do well to also scoop up similar domain names with other gTLDs such as bombaybookclub.net and (thanks to the new gTLDs) bombaybook.club. This way you can divert traffic from people who search for similar terms, given you have proper search engine optimization in place.

However, if your preferred domain name is unavailable, there are two possibilities:

1. It is already in use by a full-fledged website/web service, in which case you have little chance of obtaining it.
2. It is owned by a cybersquatter who is either using it to generate revenue piggybacked on the goodwill of your brand name or has parked it with the intention of selling to any interested party for a profitable sum.

To recognize a case of cybersquatting, check if the domain name redirects to a functioning website. If you find yourself redirected to a landing page with a “this domain is for sale” then chances are you are dealing with a cybersquatter.

However, there is also the possibility of a legitimate excuse for the domain name not redirecting to a functioning website. For example, if the landing page has an “under construction” sign or if you encounter a “404 Not Found” error, the domain owner may be in the process of constructing their website. In this case, chances of purchasing the domain are slim since the original owner will be hesi-

tant to relinquish control of it, especially if they have an established client base.

How to resolve your cybersquatting problem

Like all internet-related legislation, the laws regarding cybersquatting are constantly evolving. In the United States, a complainant can sue a cybersquatter under the Anticybersquatting Consumer Protection Act (ACPA). The act requires the trademarked name to be distinct (i.e. registered) at the time that the disputed domain name was registered by the cybersquatter. For example, if you registered the domain kfcrecipes.com with the intention of trying to profit from KFC’s trademarked brand name, then you would be guilty of cybersquatting under the ACPA. Alternatively, if your website has no relation or affiliation to the trademark and is not profiting from the inflow of potential traffic, then you have an arguable case.

Up to now, almost all cases filed under the ACPA have sided with the suing party, and many have resulted in sizeable damages. Individuals found guilty of cybersquatting under the ACPA may be required to pay up to \$100,000 for each domain name that violates the legislation. On the flip side, a lawsuit can be a drawn-out affair and the estimated business lost from not owning that domain may end up surpassing the payout you receive from the lawsuit.

Unlike the United States, India is not blessed with well-established legal frameworks to ensure trademark and copyright infringement cases are a smooth affair. If you choose to take a cybersquatter to court, you may be mired in legal paperwork for quite a while (unless of course you a large corporation with an intimidating legal team).

Fortunately, ICANN has recently set up a grievance redressal system called the Uniform Domain Name Dispute Resolution Policy (UDRP), which has been specially designed to arbitrate cybersquatting disputes. To ensure that it is a case of cybersquatting under the provisions of the UDRP, the complainant (you) will have to prove that the respondent (the cybersquatter) is in the wrong. Specifically, you need to prove that the cybersquatter is:

.SUCKS

From the list of new gTLDs that were released by ICANN, there was one that created quite the controversy. Vox Populi Registry, a company owned by the Momentus Corporation, won ICANN’s auction for the right to sell URLs with the “sucks” domain. Vox Populi Registry’s website (<https://www.registry.sucks/>) claims they are promoting consumer advocacy by allowing Internet users to create websites that can act as forums for disgruntled consumers to voice their grievances against companies with less-than-adequate customer support. Many argue that this is nothing less than Internet-highway robbery since most large corporations will just pay the sunrise registration amount, writing it off as PR damage control. Keep in mind that if you’re harboring plans to buy a evilcorp.sucks domain name, keep in mind that this will not come cheap. Be ready to shell out about \$250 a year for those domains that survive the initial “Sunrise Period”, during which registered trademark holders can buy related domains for a premium price of about \$2,500. Eventually, it is possible that many will just choose to ignore the “sucks” domain, especially since there is no shortage of YourCompanySucks.com domains, and we haven’t even considered the different permutations and combination leading to domains such as YourCompanyReally.sucks and so on.